

****Just Putting a Damper on Mass Surveillance****

****Interview with Guido Scorza, Member of the Data Protection Authority****

(by Raffaele D'Ettorre, Il Mattino, December 9, 2023)

The final text is a compromise at every line, and it could not be otherwise, given that it concerns one of the most ambitious objectives focused on so far by Brussels: to create the world's first regulatory framework on AI systems. But will the safeguards put in place by the European Union be sufficient to contain the frenzy with which Silicon Valley is investing in artificial intelligence? We discuss this with Guido Scorza, lawyer and member of the Privacy Authority.

****How and how much do the new rules agreed upon in Brussels concern us?****

"To know for sure, we must wait for the final text; let's say that within 2 years the provisions will be directly applicable in our legal system, just as is already the case with the GDPR, the European regulation on privacy. With all the consequences – and obligations – that entails."

****Who will monitor compliance with the new rules?****

"The creation of a 'European office' dedicated to AI is planned, which should operate in concert with national authorities, a fundamental element to ensure uniformity of the regulation. The hope now is that within individual countries this task will be entrusted to an independent authority and not to a government agency."

****Why?****

"Someone might be tempted to exploit artificial intelligence rather than govern it."

****Are you concerned that AI could be used improperly by institutions?****

"This is one of the points that delayed the negotiations, the use that governments could make of biometric recognition as a tool for mass surveillance. A super partes authority would guarantee greater independence and could intervene to ensure that even the government respects the limits imposed by the new regulation."

****How do you assess these limits in the current text?****

"What I have read so far points towards a robust framework. There is regulation of generative models that until recently risked being relegated to self-regulation. Tools for transparency on algorithmic content are also provided. AI has been divided into levels of risk, and there is an absolute prohibition on using some of these systems. There is also an agreement on web scraping, that is, data collection on the web by algorithms."

****As the Authority, you launched an exploratory investigation on this topic just a few days ago.****

"The thesis we support is that data published on the web should not be left at the mercy of anyone to train algorithms. Therefore, those who publish that data should adopt security measures to protect it from the risk that the current clone of OpenAI or Google comes along and scoops up that data."

****Do some of the rules contained in the AI Act overlap with the GDPR?****

"In some cases, yes. Let's say that the GDPR is a subset that can be applied in all those areas where AI needs users' personal data to function. Outside of this subset, there is much that is new and unexplored still to be addressed regarding AI. And from this point of view, a regulation is the best possible tool to do so."